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IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF ARIZONA

	No. CV
Plaintiff,	ORDER
v.	
Defendants.	

IT IS ORDERED setting an evidentiary hearing on plaintiff’s Motion for Preliminary Injunction (Doc. _____) on **[date]**. This hearing will be held in Courtroom 503, Sandra Day O’Connor U.S. Federal Courthouse, 401 W. Washington Street, Phoenix, Arizona 85003.

IT IS FURTHER ORDERED the parties shall jointly prepare and file a joint pre-hearing statement by **[date]**, setting forth the following information:

- 1. Counsel for the Parties.** Provide the mailing address, email address, office number, and cell number for:
 - a. Plaintiff(s):
 - b. Defendant(s):
- 2. Statement of Jurisdiction.**
 - a. Cite the statute(s) that give this Court jurisdiction (*e.g.*, jurisdiction in this case is based on diversity of citizenship under 28 U.S.C. § 1332).
 - b. State whether subject matter or personal jurisdiction is disputed. (If so, the party disputing jurisdiction must set forth with specificity the bases for its objection.)

1 **3. Witness List**

2 Each party must separately list the names of witnesses, whether they are fact or
3 expert witnesses, and a brief description of the testimony of each witness (except witnesses
4 who may be called for impeachment). The witnesses must be grouped as follows: (1)
5 witnesses who will be called at the hearing; (2) witnesses who may be called at the hearing;
6 and (3) witnesses who are unlikely to be called at the hearing. Additionally, the parties
7 must include the following text in this section of the joint pre-hearing statement: “Each
8 party understands that it is responsible for ensuring that the witnesses it wishes to call to
9 testify are subpoenaed. Each party further understands that any witness a party wishes to
10 call must be listed on that party’s list of witnesses; the party cannot rely on the witness
11 having been listed or subpoenaed by another party.”

12 **4. Exhibit List**

- 13 a. The following exhibits are admissible in evidence and may be marked in evidence
14 by the Courtroom Deputy Clerk:
- 15 i. Plaintiff’s Exhibits:
- 16 ii. Defendant’s Exhibits:
- 17 b. As to the following exhibits, the party against whom the exhibit is to be offered
18 objects to its admission and offers the objection stated below:
- 19 i. Plaintiff’s Exhibits: [*E.g.*, City Hospital records of plaintiff from
20 March 1985. Defendant objects for a lack of foundation because . . .
- 21 ii. Defendant’s Exhibits: [*E.g.*, Payroll records of plaintiff’s employer
22 that show payment of plaintiff’s salary during hospitalization and
23 recovery. Plaintiff objects on grounds of relevance and materiality
24 because . . .]
- 25 c. The parties must email their exhibit lists in Word format, at least three days before
26 the hearing, to Lanham_Chambers@azd.uscourts.gov.

27 **5. Depositions to be Offered.** Each party must list the depositions it intends to use
28 during the hearing. The offering party must provide the Court with a copy of the offered

1 deposition. The offering party must highlight, in color, the portions of the deposition to be
2 offered. If multiple parties are offering the same deposition, only one copy should be
3 provided. This copy must contain each party's highlighting (each party must use a different
4 color).

5 Any party objecting to the admission of any portion of a deposition shall provide its
6 objection next to the proposed testimony in the margins of the deposition. The objections
7 must be as specific as possible, identifying the Rule of Evidence, court order, or other basis
8 for the exclusion. Generic objections are not appropriate. The response to the objection is
9 to be placed under the specific objection, also in the margin, and following the same rules
10 as above.

11 The parties must include the following text in this section of pre-hearing statement:
12 "Each party hereby acknowledges that any deposition not listed as provided herein will be
13 disallowed, absent good cause."

14 **6. Procedures for Expediting Hearing.** The parties must discuss and report on all
15 available procedures that might be used to expedite the hearing, including but not limited
16 to (a) presenting stipulated summaries of deposition testimony rather than reading
17 deposition excerpts; (b) editing videotaped depositions to limit the amount of time required
18 for presentation; (c) using summary exhibits in place of voluminous documentary
19 evidence; (d) stipulations on authenticity and foundation; and (e) using courtroom
20 technology to expedite the presentation of evidence. The parties are invited to send an email
21 to Lanham_chambers@azd.uscourts.gov to arrange a time to visit the courtroom and
22 examine its technology before the hearing. Information about courtroom technology can
23 also be found at www.azd.uscourts.gov under Judges' Info → Orders, Forms & Procedures
24 → Courtroom Technology → Courtroom Technology Equipment Information – Phoenix,
25 Tucson, Flagstaff and Yuma Evidentiary/Trial Courtrooms.

1 **7. Estimated Length of Hearing**

2 _____ hours for movant(s)' evidence, including cross-exam of non-movant(s)'
3 witnesses

4 _____ hours for non-movant(s)' evidence (if any), including cross-exam of
5 movant(s)' witnesses

6 _____ minutes per side for oral argument

7 **8. Service**

8 Plaintiff(s) shall provide defendant(s) with a copy of this order setting the hearing
9 by [**date**] and shall file with the Court a notice indicating when and how notice was
10 provided.

11 **9. Failure to Respond**

12 If the non-movant(s) does not respond to the Motion for Preliminary Injunction by
13 [**date**] or fails to appear at the hearing, the Court will deem either failure to be consent to
14 the motion being granted. Local Rule Civ. 7.2(i).